NOAH | for dyrs rettigheter

To
The European Commision

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Feedback on: Welfare and traceability of dogs and cats

NOAH appreciates the opportunity to give feedback on the regulation on welfare and traceability of dogs and cats. The regulation will provide uniform EU standards for dogs and cats in breeding establishments and pet shops, as well as in shelters. The new laws will also reinforce the traceability of dogs and cats through mandatory identification and registration and will regulate online marketing to address illegal trade. Mutilations will be banned throughout the EU and imported animals will need to meet the same standards. NOAH supports the main intentions of the regulation.

Traceability

NOAH supports the proposal for mandatory identification and registration of cats and dogs. Mandatory identification of cats and dogs is an important measure that can reduce homelessness, increase animal welfare and contribute to reuniting owners with their companion animal. It will also save resources for authorities, veterinarians etc. Introducing mandatory identification will also help to regulate the breeding and trading of animals, and can increase the status of animals in society. It is important to hold breeders and owners accountable and a first step on this path is to introduce mandatory identification. However, mandatory identification will not immediately solve the challenges of animals that are already homeless. It is therefore important that requirements for identification do not decrease the status of homeless animals which lack mandatory identification. Resources and concrete measures should also be put in place to help the ownerless animals.

NOAH believes it is important to link requirements for identification and registration to restrictions on breeding. If the uncontrolled breeding of animals continues, identification will not make much difference to the animals. Responsible breeders/owners will register their animals, while irresponsible ones will continue not to register them, and it is this breeding that must be stopped.

NOAH also believes that identification of new offspring should be paid for and organized by the owner of the mother animal, before the animal is sent to a new home. Compulsory identification will lead to expenses for the breeder, and thus contribute to an understanding that breeding animals should not be "quick money", but a responsibility that has costs. If a future owner then pays for this later, it will also be able to make the buyer aware that there are costs in having an animal, and make the buyer think twice before buying the animal. The breeder will thus only have costs covered if a home is found – this will probably make the breeder think twice before

introducing new animals into the world. Rules for breeding should also contain several other requirements, such as requirements for health status and limits for the number of offspring per animal, etc. See below.

Breeding and welfare

From the proposed regulation chapter II:

This chapter shall not apply to: – breeding establishments keeping up to three bitches or queens and producing in total two litters or less per establishment and calendar year; – pet shops keeping at any given time three dogs or less or six cats or less; – shelters keeping at any given time ten dogs or less or twenty cats or less.

The regulation should apply to all people who choose to breed cats and dogs. In Norway, a big part of the litters of cats and dogs come from small non-professional breeders who might have one or two litters a year. Exempting breeders like this from the regulation will most likely exclude a big proportion of breeders.

We encourage to define breeders as all persons "who have used one or more dogs in breeding so that one or more litters of puppies have been born". The person who is responsible for the mother and puppies during birth and during the rearing period, without having been responsible for the dog becoming pregnant, may fall outside the definition, but must still be covered by relevant provisions in the regulation. It should be made clear that this applies, for example, to people who take care of a relocated dog. The regulation cannot provide a loophole for extensive breeding, but is based on people who in practice are responsible for the dog. In Norway, breeders who sell dogs may, for example, have as a condition for people to buy a dog that one litter is to be bred. Then NOAH would think that in practice it is the breeder who is behind the breeding of several litters – even if the dogs live with (and are owned by) other people, they are part of this breeder's breeding.

Breeding of extreme and unhealthy breeds

NOAH commends the intention to stop breeding of extreme and unhealthy breeds, however the regulation could go much further in and be much more specific in tackling this issue.

Primarily, NOAH believes that specific breeds should be banned from further breeding. The Oslo District Court and the Court of Appeal have ruled the breeding of Cavalier King Charles Spaniels illegal based on veterinary criteria against the Norwegian Animal Welfare Act. Cavalier King Charles Spaniel is a brachycephalic breed, and brachycephalic breeds have an average of 33 breed-related disorders per breed (compared to 11 for breeds without this trait). Breed related diseases are very widespread and the Royal Veterinary College of London has published a comprehensive book on these: Gough A, Thomas A, O'Neill D: Breed Predispositions to Disease in Dogs and Cats. 3rd ed. Chichester, West Sussex: Wiley-Blackwell; 2018. Although many breeds are plagued by a predisposition to disease, there are some breeds where diseases have a very high probability of appearing in a large proportion of the individuals, where the diseases are linked to purely anatomical conditions and where the diseases are very serious. This applies, for example, to brachycephalic breeds and the syndromes Brachycephalic Obstructive Airway Syndrome and Brachycephalic Ocular Syndrome. Such breeds should, in NOAH's opinion, be banned, as it is known that they cause animals suffering generation after generation.

The regulation should contain a prohibition against not meeting a number of functional requirements – e.g. ability to breathe unhindered, ability to easily close the eyelids over the

eyeball, ability to give birth naturally, etc. Preferably the regulation should have detailed values for function, in order to stop several of the serious, known disorders that dogs and cats are exposed to.

An example of how functional requirements can be concretized in detail is given by Utrecht University – for example the ratio of the skull's width/length: "A skull width of at least 80% of the length is a characteristic feature of brachycephalic dogs. A skull width of more than 80% of the length is therefore deemed extreme brachycephalic. This provides guidance for a standard that could be used to establish an enforcement criterion." Other specific goals to prevent an anatomy that causes suffering to the animal are, among other things, "relative muzzle length" (equal to or above 0.5); "nares ratio" (not stenosis, for example above 0.5), absence of nasal skin fold; absence of exposed sclera; "relative palpebral fissure width" etc. Several such specific target requirements for function should be drawn up. As a minimum, the function itself should be described and it should be required that dogs used in breeding have this function, for example, normal and unobstructed breathing ability.

In general, NOAH strongly supports that mutilations will be banned throughout the EU and that imported animals will need to meet the same standards. NOAH supports that the euthanasia of a dog or a cat should only be performed by a veterinarian. It is positive that the regulation explicitly bans keeping dogs and cats in containers, except for when it is strictly necessary. NOAH suggests prohibiting selling cats and dogs in pet shops altogether, and banning breeds of both cats and dogs with high statistical probability of poor health.

Kind regards

NOAH – for animal rights

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